

TAB 7



Board of Education Report

[Return to Order of Business](#)

File #: Rep-282-22/23, Version: 1

Authorization to Negotiate and Execute a Joint Powers Agreement with the County of Los Angeles for Its Use, Operation and Maintenance of Certain Recreational Areas (commonly referred to as Walnut Nature Park) and Some Outdoor Hardcourts at Walnut Park Elementary School

June 13, 2023

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive, and/or his designee, to negotiate and execute a Joint Powers Agreement (JPA), and/or any other reasonable instruments, with the County of Los Angeles (County) for its use, operation, and maintenance of certain recreational areas (commonly referred to as Walnut Nature Park) and some outdoor hardcourts at Walnut Park Elementary School (School).

Background:

Government Code Section 6500 et seq. allows two public entities to enter into a JPA for the joint exercise of any powers common to the public entities. The County has the largest population of any county in the nation, with approximately 10 million residents. The County has limited recreational facilities in the geographic location of the School available to its residents. The County and Los Angeles Unified School District (Los Angeles Unified or District) desire to enter into the JPA based on their mutual determination that the County and Los Angeles Unified both have the power to provide recreational spaces for residents including the students and community of the School.

In 1997, the County agreed to provide grant funds to the Santa Monica Mountains Conservancy, an agency of the State of California (Conservancy), and the Mountains Recreation and Conservation Authority, the operating arm of the Conservancy (MRCA), to make improvements to the School and an adjacent Los Angeles Unified-owned property at the southwest corner of the School along Broadway and Pacific Boulevard (Unimproved Land) and to provide community access to the improved areas during after-school hours and on weekends.

On December 23, 1997, Los Angeles Unified, the County, and the Conservancy, entered into a Community Recreation and Cooperative Agreement (Cooperative Agreement) for an initial term of 20 years, with an option to extend the term for five years which included making improvements to the School and the Unimproved Land in order to make the space available for public use. The improvements in the Unimproved Land completed on or around 1999 and included, among other things, the installation of a play area, outdoor classroom amphitheater, restrooms, a decomposed granite (DG) walking/running path, planting of trees and gardens, fencing and gates to allow School and public access. This area as improved is now known as the Nature Park.

The improvements also included the development of a multi-purpose field and related irrigations systems, the installation of restrooms, a DG walking path, the planting of trees, shrubs and the installation of related fencing and gates for public access at the School (School Improvements).

Although there were no improvements made to the blacktop area of the School, which includes handball walls and basketball courts (Hardcourts), the Hardcourts were also included for public use as part of the Cooperative

Agreement as the Hardcourts are located between the School Improvements and Nature Park. The School Improvements, the Hardcourts and the Nature Park are collectively referred to as the “Park Areas”.

Prior to the expiration of the Cooperative Agreement in December 2017, the County informed Los Angeles Unified that the Conservancy did not want to continue to be a party to the Cooperative Agreement and the County and Los Angeles Unified agreed to release the Conservancy from any further contractual obligations.

County exercised its option to renew the initial term for an additional five years and the Conservancy was removed as a party from the Cooperative Agreement. The Cooperative Agreement has now expired. The County has requested to enter into a JPA with Los Angeles Unified for the use, maintenance and operation of the Park Areas based on their mutual determination that such use is necessary to meet the social needs of the population of the County by providing community recreational services and amenities, which are beneficial to the general public, including the students and community of the School. Under the terms of the JPA, the County, at its own expense, will continue to institute and operate County-run programs and recreational activities that can be conducted safely for individuals in the community and students at the School and maintain, repair and/or improve the School Improvements and Nature Park in a good, safe, and sanitary condition and in accordance with Los Angeles Unified requirements. Los Angeles Unified, at its sole cost and expense, shall continue to maintain the Hardcourts and pay for all utilities for the Park Areas, as the Park Areas are not separately metered. County understands and agrees that County is liable for the use of the Park Areas during public use hours. School shall continue to have exclusive use of the Park Areas during regular school days. The JPA will be for a term of five years with five annual one year extension options.

The School is located within the boundaries of Huntington Park/Vernon Community of Schools, Region East, and Board District 5 (Jackie Goldberg). As of the 2022-2023 Electronic Capacity Assessment Review (E-CAR), the School served 538 students in K-5th grade.

Expected Outcomes:

Authorize staff to negotiate and execute the JPA and any other reasonable instruments with the County for the use, operation, and maintenance of the Park Areas. The execution of the JPA will allow the County continued use of the Park Areas to provide much-needed recreational space and programming to the students of the School and the community during non-school hours and on weekends.

Board Options and Consequences:

If the proposed action is not approved, staff will be unable to negotiate and execute the JPA to enable the County’s continued use of Park Areas. The County will not be able to provide recreational programs and the students and community will no longer have access to the Park Areas during after school hours and on the weekends. Furthermore, Los Angeles Unified will be responsible for the cost to operate and maintain the School Improvements and the Nature Park, costs which are not currently part of its budget.

Policy Implications:

The proposed action does not have a policy impact and continues Los Angeles Unified’s goal of making school recreational areas available to the community in areas that are park poor. This also supports the County’s and Los Angeles Unified’s continued collaboration in providing much needed programs to the residents of the County and the surrounding communities.

Budget Impact:

The activities associated with negotiating and executing the JPA with the County requires staff time from the Facilities Services Division and the Office of the General Counsel. Additional funding is not needed to

File #: Rep-282-22/23, Version: 1

implement the proposed action. The County will pay for maintenance, repairs, and improvement of the School Improvements and Nature Park. Los Angeles Unified will continue to pay for all utilities for the Park Areas with General Fund.

Student Impact:

Students from the School and surrounding schools, as well as members of the community, will be able to continue to participate in the County's recreational programs that would otherwise not be available to them throughout the year.

Equity Impact:

The recreation facility provides the community with organized activities and open recreation for youth and adults with the main purpose of increasing community involvement.

Issues and Analysis:

Los Angeles Unified and County will negotiate and enter into a JPA for the County's continued use, operation, and maintenance of Park Areas. Under the terms and conditions of the proposed JPA, the County, at its sole cost and expense, will be required to provide reasonable staffing to provide supervision for the use of the Park Areas for its recreational programs and provide adequate security, safety, and supervision for the use of the Park Areas at all times during the County's use.

The proposed term of the JPA will be negotiated and will be for a period of five years, with five annual one year extension options. Los Angeles Unified will not be obligated to provide an extension to the JPA at the end of the option term. Should the County request to continue its use, operation, and maintenance of the Park Areas after exercising the option to renew, the County and Los Angeles Unified may negotiate a new agreement for the use, subject to Board approval.

Attachments:

None

Informatives:

None

Submitted:

05/16/2023

RESPECTFULLY SUBMITTED,

APPROVED BY:



ALBERTO M. CARVALHO
Superintendent



PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

REVIEWED BY:

APPROVED BY:



DEVORA NAVERA REED
General Counsel



MARK HOVATTER
Chief Facilities Executive
Facilities Services Division

☒ Approved as to form.

REVIEWED BY:

PRESENTED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning



AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

☒ Approved as to budget impact statement.